IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Bail in terms of section 83 (2) of the Poisons, Opium and Dangerous Drugs Ordinance as amended by the Section 04 of the Poisons, Opium and Dangerous Drugs (Amendment) Act No. 41 of 2022.

CA Case No: BAL/418/2023
MC- Matara
Case No: BR/456/23

The Officer-in-Charge,
Vice Prevention Unit,
Police Station,
Matara.

Complainant

Vs.

Allagoda Gamage Madura Manaranjana

Suspect

And Now Between

Hatharasinghe Arachchige Uditha Kalyani,
Malapalahena, Galpamuna,
Palatuwa.

Petitioner

On Behalf of

Allagoda Gamage Madura Manaranjana

Vs.

1. The Officer-in-Charge,
   Vice Prevention Unit,
   Police Station,
   Matara.

2. The Hon. Attorney General,
   Attorney General's Department,
   Colombo 12.

Respondents

Before: **R. Gurusinghe J.**

&

M.C.B.S. Morais J.

Counsel: I.B.S. Harshana for the Petitioner.

Jehan Gunasekara, SC for the Respondents.

Inquiry on: 12.03.2024

Decided On: **07.05.2024**

M.C.B.S. Morais J.

The petitioner is the wife of the suspect in the case bearing number BR/456/23 in the Magistrate's Court of Matara. The suspect was arrested by the officers attached to the Matara Police Station on the 31st of January 2023 for having in possession and trafficking a gross quantity of 37.16 grams of 'Diacetylmorphine' alias 'Heroin'. Subsequent to the Report of the Government Analysts the pure quantity of said heroin is said to be 14.62 grams. It is apparent that the suspect has been produced before the Magistrate Court of Matara on the 1st of February 2023 and held in remand custody up to this date.

The petitioner has made this application before us under section 83 of the Poisons, Opium and Dangerous Drugs (Amendment) Act, No.41 of 2022. As for the provisions of section 83(2),

> *"83(2) notwithstanding the provisions of sections 84 and 85, a person suspected or accused of an offence under subsection (1) of section 54A and section 54B-*

(a) of which the pure quantity of the dangerous drug, trafficked, imported, exported, or possessed is ten grams or above in terms of the report issued by the Government Analyst under section 77A; and

(b) Which is punishable with death or life imprisonment, shall not be released on bail except by the Court of Appeal in exceptional circumstances."

The statute does not clarify what exceptional circumstances are. When granting bail to suspects under the Ordinance, our Superior Courts have taken into account a number of circumstances that qualify as exceptional.

In, ***Ramu Thamotharampillai V. The Attorney General*** **[2004] 3 SLR 180**, it was held that;

"the decision must in each case depend on its own peculiar facts and circumstances."

In, ***Labynidarage Nishanthi V. Attorney General*** **CA (PHC) APN 48/2014)**, said that;

"…the term 'exceptional circumstances' has not been explained or defined in any of the statutes. Judges are given a wide discretion in deciding in what creates a circumstance which exceptional in nature."

In, ***Welathanthrage Amila Sampath Botheju V. Attorney General*** **CA/BAL/0239/23**, it was held that;

"…a certain situation amounts to exceptional circumstances or not, has to be considered on a case-by-case basis, unique to each application before the court."

When applied in relation to the facts before us, in paragraph 13 of the petition, the petitioner pleads that exceptional grounds pleaded by the counsel at the inquiry in addition to the grounds stated in the petition are alleged as exceptional grounds and they are as follows:

- Nothing was recovered from the possession of the suspect and the heroin was introduced to him by the police officers.
- It is unjust for the suspect to be incarcerated in remand prison over a period of four months (by the time of filing this application) without serving an indictment.
- The suspect has 12, 3, and 1 ½ years old children and the petitioner is burdened with taking care of them alone.
- The suspect is the sole breadwinner of the family.

On perusal of the material before us, the petitioner was arrested on the 31st of January 2023. The Government Analyst's Department has sent the report of the relevant illegal substance on 27th of June 2023.

This petition was filed on the 14th of June 2023 and as of the date of filing this petition, the suspect has been in remand custody for a period of only four months. Therefore, the urged delay in serving the indictment cannot be considered as an inordinate or oppressive delay.

Having children of tender age and being the sole breadwinner of the family would not amount to exceptional circumstances but fall into the category of personal circumstances.

In the case of ***The Queen V. Cornelis Silva*** **(74 NLR 113)** at 114 Weeramantry, J. held that;

"The first of these reasons (having children of tender age) scarcely bears examination while the difficulty envisaged in the second ground is by no means extraordinary as it is one which would be common to many accused persons."

In the case ***Ranil Charuka Kulathunga V. Attorney General*** **CA (PHC) APN 134/2015**, it is said that;

"The petitioner submits several grounds to consider bail. The petitioner states that he is a married person with two school going children is not an exceptional ground. It is the normal day to day life of the people."

Other than the above urged, the petitioner has not relied on any other exceptional ground. As I stated above, this application is devoid of any exceptional ground.

Therefore, I do not consider that there is a proper application before me to grant bail. Therefore, I have no option but to dismiss.

Accordingly, this bail application is refused and dismissed.

Judge of the Court of Appeal

R. Gurusinghe J.

I agree

Judge of the Court of Appeal